HARBOURLIGHT MEDIA

Past Clearances Casebook

Document Casebook 01 | Issue 2 | Owner: Clearance | Review cycle: every six months

1. About this casebook

Eight closed campaigns, one for each copy issue, kept as worked examples of the Advertising Clearance Policy and the category codes in practice. Each records the copy issue and how it was settled, how the booked spots were checked against the category's code, and the decision.

The casebook is confidential. It records how other advertisers' campaigns were decided, is for Clearance Executives and Clearance Controllers only, and is never quoted to agencies.

Each case applies the code of its own category. A figure quoted in one case belongs to that case's category and to no other, and a campaign is always checked against the current code of its own category.

2. Health claim

CLR-BKM-0011336: Flexamin's 60-second copy 'Back to Your Day', clock number BKM/FLEA058/060, submitted by Brightkite Media. Medicines and health, pain relief. 18 spots booked on Harbourlight One and Harbourlight Life.

The first read questioned the line 'targets pain at the source', a claim about what the product does. The agency changed the line to the wording the product's licence supports, and the revised copy was cleared.

Every spot met the medicines and health code. One was booked into the end break at 08:30 on Thursday on Harbourlight Life, between Junior Newsdesk, a programme made for children, and Home Kitchen. The medicines and health code forbids spots in a programme made for children but not next to one, and neither programme was forecast at an under-18 index of 150 or more, so the spot was cleared.

Decision: CLEAR. All 18 spots cleared.

3. Price or offer claim

CLR-ASH-0004140: Nibbleton Crisps' 30-second copy 'Movie Night', clock number ASH/NIBO076/030, submitted by Ashgrove Creative. Less healthy food, savoury snacks. 42 spots booked on Harbourlight One and Harbourlight Drama.

The first read raised a query about the 'half price' offer in the copy. The copy was also put to a legal review. The revised end frame shows the offer's terms beneath the headline, and the revised copy was cleared.

Nine of its spots were booked into Friday's broadcast day on Harbourlight Drama, the last of them written by the channel's scheduler as Saturday 00:40. On the broadcast clock that is Friday 24:40, so it was the campaign's ninth spot on Harbourlight Drama in Friday's broadcast day - one more than the less healthy food code's limit of 8 - and it was withdrawn. Counted by calendar day, it would have looked like Saturday's first spot.

Decision: CLEAR WITH RESTRICTIONS. 41 spots cleared and 1 withdrawn. The agency moved the withdrawn spot to breaks the code allows, and the re-booked spot was cleared.

4. Environmental claim

CLR-BLC-0004859: Kestlebury Wines' 30-second copy 'Sunday Lunch', clock number BLC/KESU078/030, submitted by Blue Canal Agency. Alcohol, wine. 20 spots booked on Harbourlight One, Harbourlight Sport and Harbourlight Drama.

The first read asked what the 'zero waste' line was based on. The copy was also put to a legal review. The revised copy qualifies the line and says exactly which part of the product it covers, and it was cleared.

Two of its spots were booked into the same centre break, at 22:40 on Thursday on Harbourlight One. Two spots of one campaign in one break are zero minutes apart, so the one with the later spot reference came less than the alcohol code's separation of 20 minutes after the other and was withdrawn; the other was cleared. Every other spot met the alcohol code.

Decision: CLEAR WITH RESTRICTIONS. 19 spots cleared and 1 withdrawn.

5. Comparative claim

CLR-PVT-0012966: Silverbirch Card's 30-second copy 'Card Switch', clock number PVT/SILH029/030, submitted by Pivot and Thread. Consumer credit, credit cards. 10 spots booked on Harbourlight One, Harbourlight Sport and Harbourlight Life.

The first read asked for the basis of the comparison 'beats the leading brand'. The agency reworded the line to 'preferred in an independent test', and the revised copy was cleared.

Six of its spots were booked on Harbourlight Life in Tuesday's broadcast day. The sixth, at 23:50, was one more than the consumer credit code's limit of 5 spots of one campaign on one channel in a broadcast day, and was withdrawn. The first of them, at 19:00, was cleared: the code's restricted hours, 06:00 to 19:00, end at 19:00, and a break at the time restricted hours end is outside them.

Decision: CLEAR WITH RESTRICTIONS. 9 spots cleared and 1 withdrawn.

6. Appeal to under-18s

CLR-CMR-0009185: Sugarbrook Pizza's 10-second copy 'Friday Night In', clock number CMR/SUGB092/010, submitted by Calloway Mercer. Less healthy food, fast food. 37 spots booked on all four channels.

The first read found animated characters in the copy, likely to appeal to under-18s. The revised copy removes the youth-facing elements and was cleared.

Three spots booked before 21:00 fell inside the less healthy food code's restricted hours, 05:30 to 21:00, and were withdrawn. One of them was in a centre break of Championship Football Live at 20:05 on Harbourlight Sport: the less healthy food code has no exception for live sport coverage. A spot booked at 21:00 itself was cleared, because a break at the time the restricted hours end is outside them.

Decision: CLEAR WITH RESTRICTIONS. 34 spots cleared and 3 withdrawn.

7. Gambling inducement

CLR-HWK-0002751: Kingsfold Sports' 30-second copy 'Every Match Counts', clock number HWK/KING048/030, submitted by Hawkmoor Creative. Betting and gaming, sports betting. 47 spots booked on Harbourlight One and Harbourlight Sport.

The first read raised a concern about a 'Today only' super. The revised copy removes the urgency and the scenes of winning, and was cleared.

Ten spots were booked before 21:00, every one in a centre break of live sport coverage on Harbourlight Sport. All but one began more than 10 minutes after the coverage started and more than 10 minutes before it ended, so the betting code's exception to its restricted hours of 05:30 to 21:00 applied and they were cleared. The other, at 18:22 on Sunday in Premier Football Live, which ran from 16:00 to 18:30, began 8 minutes before the coverage ended; the exception did not apply and the spot was withdrawn.

Decision: CLEAR WITH RESTRICTIONS. 46 spots cleared and 1 withdrawn.

8. Alcohol and social success

CLR-FWL-0011424: Glenmarrow Brewery's 30-second copy 'Golden Hour', clock number FWL/GLEN076/030, submitted by Fenwick Lane. Alcohol, beer and lager. 28 spots booked on Harbourlight One and Harbourlight Sport.

The first read questioned whether the copy linked drinking with a great night out with friends. On a second look the executive found the drink incidental to the scene, and the copy was cleared as submitted.

One spot was booked into the end break at 21:15 on Saturday on Harbourlight Sport, between Premier Football Live, forecast at an under-18 index of 104, and Football Tonight, forecast at 116. Neither reached the alcohol code's threshold of 120, so the spot was cleared, with every other spot.

Decision: CLEAR. All 28 spots cleared.

9. Financial promotion

CLR-CRM-0019951: Wrenbridge Credit Card's 30-second copy 'Your Card Your Way', clock number CRM/WREN048/030, submitted by Cormorant Media. Consumer credit, credit cards. 8 spots booked on Harbourlight One.

The first read found the cost of borrowing unclear, with no total amount repayable. The copy was also put to a legal review. The revised copy had not been received by the time the campaign's first spot was due to be transmitted, so the copy could not be cleared.

Every one of its 8 spots met the consumer credit code: none fell inside the restricted hours of 06:00 to 19:00, none was in or next to a programme forecast at an under-18 index of 125 or more or made for children, and none broke the daily limit of 5 or the separation of 15 minutes.

Decision: REJECT. No spot cleared, although every spot complied, because the copy itself could not be cleared. The agency later submitted the revised copy as a new campaign under a new clock number.